

Council Meeting

May 12, 2021

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The Claremont City Council held a meeting on Wednesday, May 12, 2021, in the Council Chambers of City Hall and via Zoom.

The meeting was called to order by Mayor Lovett at 6:31 p.m.

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

To join the webinar:

By telephone:

1-646-558-8656

Webinar ID: 879 1605 6352

Passcode: 739587

If there is a problem getting through to that number, please call 603-542-7002.

Members of the Council present, including location and who was in the room:

At-Large Councilor Dale Girard – Council Chambers, Councilors Koloski and Stone, public

Assistant Mayor Allen Damren – home, alone

Mayor Charlene Lovett – home, husband

At-Large Councilor Nicholas Koloski – Council Chambers, Councilors Girard and Stone, public

Ward II Councilor James Contois – home, wife

Ward III Councilor Jonathan Stone – Council Chambers, Councilors Girard and Koloski, public

Absent:

Ward I Councilor Andrew O'Hearne

At-Large Councilor Debora Matteau

Also present:

Edward Morris, City Manager

Mary Walter, Finance Director

AGENDA CHANGES

None

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Damren and seconded by Councilor Stone to accept the minutes of the April 14, 2021, City Council meeting.

Roll call vote:

Girard - yes

Damren - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 6-0.

A motion was made by Councilor Koloski and seconded by Councilor Stone to accept the minutes of the April 28, 2021, City Council meeting, as amended.

Mayor Lovett said on page 14, regarding the Claremont Senior Center PILOT, third paragraph, the acronym should be ARPA, American Rescue Plan Act, not ARCA.

Roll call vote:

Girard - yes

Damren - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 6-0.

MAYOR'S NOTES

- This is National Police Week.
 - Police Chief Mark Chase said they would use this week as a time of reflection to think about what has happened over the last year including the fallen officers.
- NH Historic Preservation Alliance recognized the Goddard Block and gave Kevin LaCasse, New England Housing, an achievement award.
- Thanked everyone for the final cleanup for this year, hosted by the Ink Factory
- Memorial Day Parade will be Monday, May 31st, 10 a.m.
- American Legion have placed flags at veterans' gravesites
- Before Memorial Day, flags will be put up around Claremont by the Sons of the Legion
- Announced that former Councilor Carolyn Towle had recently passed away. She served as a City Councilor August 2013-December 2017. She also served on the Parks and Recreation Commission, Amtrak Ad Hoc Committee, Zoning Board of Adjustment, and the School Board. Thoughts go out to the family. Moment of silence.

CITY MANAGER'S REPORT

- **CDBG Grant** – On April 1, 2021, the Community Development Advisory Committee of the New Hampshire Community Development Finance Authority (CDFA) approved the City's CDBG applications on behalf of Southwestern Community Services in the amount of \$235,000 for improvements to the emergency shelter, and the Claremont Learning Partnership in the amount of \$300,000 for the purchase of 169 Main Street. These grants will need to be approved by Governor and Council before coming back to the City Council for acceptance.
- **Airport Runway Project**- Stantec Engineering is reviewing the bids to make sure they meet all the requirements of the bid before the City makes an award. The construction for this project will take place in 2022.
- **New Fire Engine** - The new fire engine was put in service on May 5, 2021. Before the engine was put into service, each team was trained on the apparatus. He thanked Dingee Machine, the local dealer, for spending four days training each of the teams.
- **Finding Your Stride** - Claremont Parks and Recreation Department is teaming up with the Claremont Police Department to offer "Finding Our Stride." This program is geared toward building FITNESS, TEAMWORK and SELF-ESTEEM through running for middle school aged students, and is coached by Police Chief Mark Chase with the assistance of other Police Officers. This program is sponsored by: Children's Fund of the Upper Valley; Finding Our Stride; and Claremont Police Dept. & Claremont Parks & Rec.

Trash Clean Up: Rocky's Taqueria collected 1 ton of trash, Kiwanis Club collected over 600 pounds of trash, and Ink Factory/Red River collected 1 ton of trash.

Finance Director search has been narrowed down to three candidates.

Pleasant Street Project – B.U.R. Construction is being awarded the bid. The City has been able to negotiate a couple of small changes which has brought the price down to \$3.9 million. The contract will be signed tomorrow and the project is expected to start in the next month or so.

- **Hydrant Flushing**- Hydrant Flows/Water Main Flushing will take place from May 17, 2021 through May 27, 2021.
- **Water Shutoffs** – Since the beginning of the COVID-19 pandemic and with the issuance of the Governor's Emergency Order #3 prohibiting utilities from being shut off, the City has had a moratorium on water shutoffs throughout the City. In July of 2020, the Governor issued Emergency Order #58 ending this moratorium with some provisions for repayment of past due amounts. For the health and safety of our residents, the City continued to suspend water shutoffs. The City is now going to phase in water shutoffs over the next few months. The City will begin with water

bills that are past due from August of 2020, followed by the November 2020 billing cycle one month later, and so on until we are back up to date with our water shutoff program.

- **Spring Paving and Road Maintenance Plan** – The Department of Public Works is finalizing the spring paving and maintenance plans. The roads that are planned to be paved before the end of the fiscal year are Red Water Brook Road from Route 120 to Old Coach Road and Franklin Street from Sullivan Street to Main Street. Because of the County project on Franklin Street and the use of heavy equipment, Franklin Street may not get done this spring.

The City also plans to complete line painting in the City this spring along with fog and crack sealing multiple roads throughout the City to extend the life of the roads.

COVID-19 Update

- **COVID-19 Update** – At the time this report was written, active COVID-19 cases throughout the State of New Hampshire have continued to decline with a 23% decrease in active cases across the state from April 28, 2021 to May 4, 2021. The City of Claremont currently has 25 active cases, with the current Sullivan County infection rate at .85%. These numbers have been fairly consistent over the past couple weeks.

COVID-19 cases are declining. Claremont has 15 active cases as of today and the infection rate is .79%.

In order to reduce these numbers in Claremont, we must continue our efforts to control the spread of the virus. It is still important that people maintain social distancing, wash their hands, and wear masks when they are in large groups or unable to socially distance.

Vaccinations are now available for anyone over the age of 16 in the State of New Hampshire (resident or non-resident).

As we enter the summer season, the City is working with local organizations to plan and bring back many community events. We ask everyone to please be mindful and respectful of others by maintaining the proper social distancing and to wear masks when this is not possible.

Councilor Koloski asked about the antique rail bed under Pleasant Street. The pieces are valuable.

Councilor Stone asked about delinquent water bills. Mr. Morris said there are about 100 outstanding from last August.

Councilor Girard brought up Councilor Matteau's question about the tax rate. He asked if the two Public Works trucks that are on the Procurement page will be ordered. He asked about the Finance software status. Mr. Morris said he is finalizing the response to the tax rate question. The majority of the \$176,000 increase was due to the Veterans Tax Credit and Elderly Exemptions increases. Other smaller issues are Meals & Rooms get adjusted, etc. The Veterans Tax Credit was changed from \$125-\$500. The City has decided not to order the two Public Works vehicles. The City will be finalizing the Finance software purchase. Seven bids were received. Claremont is working with Lebanon on this. Lebanon has signed on with BS&A and Claremont will sign on with them in the near future.

Councilor Koloski asked at what point will there be a discussion about having Department Heads at the Council meetings. He's prepared to make a motion that they don't have to be present unless they have an item on the agenda. No questions have been made to them. Councilor Stone said the motion should exempt the Finance Director. Councilor Girard said this was the second month that no question had been asked of the Directors. The original motion had been for Directors to attend the first meeting of the month for a period of 90 days. Mayor Lovett said she wanted to be clear when the 90 days were up. Councilor Koloski preferred to move on this tonight.

A motion was made by Councilor Koloski and seconded by Councilor Stone to not have all Department Directors, with the exception of the Finance Director, at the first meeting of the month unless they have an item on the agenda.

Roll call vote:

Girard - yes

Damren - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 6-0.

APPOINTMENT TO BOARDS AND COMMITTEES

Airport Advisory Board

A motion was made by Assistant Mayor Damren and seconded by Councilor Girard to appoint Michael LaFont to seat 2 of the Airport Advisory Board.

Councilor Koloski asked about Councilor Girard moving from seat 1 to the Councilor seat. Mayor Lovett said it will be addressed at the next meeting.

Roll call vote:

Girard - yes

**Damren - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 6-0.**

Historic District Commission

A motion was made by Councilor Stone and seconded by Assistant Mayor Damren to appoint Jonathan Nelson to seat 3 of the Historic District Commission.

**Roll call vote:
Girard - yes
Damren - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 6-0.**

A motion was made by Assistant Mayor Damren and seconded by Councilor Stone to appoint Bill Kennedy to seat A2 of the Historic District Commission.

**Roll call vote:
Girard - yes
Damren - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 6-0.**

Parks and Recreation Commission

A motion was made by Assistant Mayor Damren and seconded by Councilor Girard to re-appoint James Feleen to seat 2 – Ward II of the Parks and Recreation Commission.

**Roll call vote:
Girard - yes
Damren - yes
Koloski - yes
Contois - yes
Stone - yes**

Lovett - yes

Motion carried 6-0.

A motion was made by Councilor Girard and seconded by Councilor Stone re-appoint Sheila Rook to seat 3 – At Large of the Parks and Recreation Commission.

Roll call vote:

Girard - yes

Damren - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 6-0.

Zoning Board of Adjustment

Mayor Lovett said that Carolyn Towle had applied for seat 4 of the Zoning Board of Adjustment, but due to her passing, her name would be removed.

CITIZEN'S FORUM

Rebecca McKenzie, Ward 2, thanked all who participated in the Earth Day cleanups. She invited the public to join the Energy Advisory Committee (EAC) and the Electric Aggregation Committee. She listed some of the projects the EAC is working on.

Norman Blouin, Ward 3, talked about the proposed tax increase of 28 cents for the City. He talked about the \$4.5 million for the Pleasant Street Project and that he feels the money would be better spent on roads. He said his road hasn't been paved in 38 years and there is not much left of it. He suggested bringing outside businesses to Claremont for employment; the City needs employment.

Michael Demars, Ward 3, said that he has applied for the vacant Council seat. He is a business owner. He agreed that some City roads are falling apart. He would like to be part of unraveling some past issues. Claremont has made progress, but there is still lots to do.

OLD BUSINESS

Legislative Update

Mayor Lovett talked about the ARPA (American Rescue Plan Act) funds being used for broadband expansion. At the end of the month, the Senate will vote on the state's proposed budget. Contact Senator Sue Prentiss to reiterate the need for the state to not reduce the revenues that are supposed to be given to municipalities through statute (i.e. Meals and Rooms tax,

revenue sharing) and not to suspend the SAG (State Aid Grant) funds. If suspended, Claremont will lose well over \$200,000 each year of the next biennium.

Selection Process for Boards, Committees and Commissions

Mayor Lovett hadn't completed what she had planned to do, so she suggested moving this to the May 26th meeting and she will coordinate with Staff before then to make sure there is a standardized way of appointing members of boards, committees and commissions. Minutes from the March 10, 2021, Council meeting where this was discussed were included in the Council packets and Councilor Koloski said he did not agree with all of the statements.

A motion was made by Councilor Stone and seconded by Councilor Girard to table this discussion to the May 26, 2021, Council meeting. Councilor Stone wanted to have the other three Councilors present before going further.

Roll call vote:

Girard - yes

Damren - yes

Koloski - no

Contois - no

Stone - yes

Lovett - yes

Motion carried 4-2.

Focus Areas to Support Priority Areas

Council Priority and Focus Areas with proposed Action Items (Prepared by Mayor Lovett in preparation for May 12 Council meeting)

Note: Council approved the priority and focus areas on Feb 24, 2021.

1. Housing
 - a. Cultivate healthy homes, with a focus on lead hazard mitigation
 - (1) Promote the Sullivan County Lead Hazard Mitigation Program, aligning efforts with lead poisoning statistics.
 - (2) Expand code enforcement efforts.
 - (3) Continue distribution of smoke detectors, focusing on single and two-family homes.
 - b. Improve quality of housing stock
 - (1) Expand code enforcement efforts
 - (2) Institute a certificate of compliance program for rental units.
 - c. Proactively address blight, focusing on specific neighborhoods/corridors
 - (1) Expand code enforcement efforts.
 - d. Increase Housing Stock

- (1) Develop Strategic Housing Plan
 - (2) Update subdivision regulations.
2. Economic Development
 - a. Focus on the downtown and business parks
 - (1) Complete the downtown revitalization project.
 - (2) Identify vacant/dilapidated properties in the city center and create strategies to rehabilitate or remove them.
 - b. Identify best use of city-owned land
 - (1) Create comprehensive inventory of city-owned land and revisit proposals for their use.
 - c. Strategic spending to draw productive businesses/citizens, focusing on the arts and recreation sectors
 - d. Innovation in the environment/energy sectors, drawing new businesses in these growing industries
 - (1) Adopt ordinances that will promote the manufacturing of renewable energy.
 - (2) Investigate the benefits of community power aggregation.
 - (3) Advocate for and adopt net metering.
 - e. Utilize available development incentives
 - (1) Ensure all benefits of 79E are incorporated into city's resolution.
 - (2) Consider adoption of RSA 53-F, energy efficiency and clean energy districts.
 - (3) Leverage advantages of economic opportunity zones.
3. Infrastructure
 - a. Roads
 - (1) Budget for a minimum of 2020 spending levels, ideally allocating \$750K if possible.
 - (2) Utilize Asset Management Program, incorporating factors that improve resiliency and protect investment.
 - b. Extending water and sewer
 - (1) Connect new construction to this infrastructure whenever possible.
 - c. Addressing drainage issues along Charlestown Road
 - (1) Apply Asset Management Program in determining priority for resolving this.
 - (2) Apply for grants/loans and investigate assessment options.
 - d. Broadband
 - (1) Leverage federal funds to improve accessibility.
 - e. Sidewalks
 - (1) Utilize Asset Management Program
 - (2) Update Appendix on Sidewalks in Municode
 - (3) Ensure funds allocated in budget for sidewalks are spent on sidewalks.
4. Tax Rate Stabilization
 - a. Decrease operational costs through increased efficiencies, focusing on energy efficiency/production

- (1) Apply Energy Audit findings
- b. Advocate for our fair share in state funding
 - (1) Promote the restoration of meals and rooms tax, revenue sharing per RSA 31-A and protection of SAG payments.
 - (2) Collaborate with Claremont School District regarding education related revenue streams.
- c. Increase Tax Base
 - (1) Adhere to process for tax-deeded properties.
 - (2) Adopt ordinances that incentivize new construction.
 - (3) Promote Claremont as a desirable place in which to live and establish a business.
- d. Recapture lost valuation
 - (1) Adopt revaluation schedule to capture increasing property values

Mayor Lovett said these are suggestions. Action items are supposed to be more specific. The hope is to drill down for specific items for this year. This would reflect Council's desire to see action on these areas and it should be supported by the budget. These items need to be specific in order to be reflected in the budget as well as be a part of the evaluation process for the City Manager.

Councilor Koloski:

- City-owned parcels along the Sugar River (i.e. County rebranding – Sugar River Region)
 - Mayor Lovett thinks this is under Economic Development 2b(1)
 - Councilor Koloski believes there is a list of City-owned lands available
 - Mayor Lovett – if the list exists then the language should be to maintain an updated list
 - Mr. Morris said in the past the goals of the Council have been very broad. He would like to move toward a strategic planning model (5-year plan). It doesn't tie future Councils, but offers a plan and start to prioritize projects. He will look through the list of City-owned lands and make recommendations to the Council and work with the Council to decide what we want to do. We'd like to get some of the land back on the market and conserve some for future uses.

Councilor Koloski:

- Would like to receive a State of the City presentation as far as economic development goes (i.e. North and Main; marketing City-owned land for development).

Assistant Mayor Damren:

- A list of development would be helpful
 - Mr. Morris is working to review that list and it can be forwarded to the Council as we have recommendations

Mayor Lovett said changes can be made to the list as discussed.

Sullivan County ATV Club Class V Roads Permission – Public Hearing

Sullivan County ATV Club (SCATV) was asking to include the Class V portion of Veterans Park Road, Cat Hole Road (portion), and Petrin Heights Road (from VIP to the Class VI portion of Roberts Hill Road) to their annual permission.

Steven Wilkie, President SCATV, also recommended establishing an OHRV task force. He said since the last meeting, the Club has looked for alternate parking and nothing has materialized. There is limited parking at Burger King (half of last year's availability). They have applied for Grant in Aid to help with paving on the last half mile of Cat Hole Road. He said they talked to NH Fish and Game (NHFG), and if the City allows ATV use on the road, they will patrol a lot more. SCATV will put up signage limiting riding to daytime hours. They will try to do more rider education and having smaller groups of riders on the road. He said he talked to Public Works and they will put down calcium chloride to keep the dust down. SCATV Trail Patrol will patrol at least eight hours per day on the weekends. Complications from last year is that the whole North Country had closed its lodging, so riders were limited to making day trips. This year everything is open and more riders will head north. If this is not approved, NHFG won't patrol those roads because they will not be a part of the trail system. Also, if this doesn't get approved, businesses will lose some revenue.

Councilors' concerns/comments:

- If Cat Hole Road is not opened, trailers will park along the road – safety issue
- Concerned noise levels are above the level allowed in the Code
- Without access to the area, riders will go to other areas – lose revenue
- No matter which decision is made, won't make everyone happy
- Petition from local residents (in favor of not allowing ATV access to the Class V portion of Cat Hole Road) was received by Councilors, but it was not stated whether it was vetted or not
- Shutting down the road won't stop people from driving on it illegally
- Put out messages along the road using the City's message board(s)
- Questions about the number of calls for service/violations in that area
- If approved, City can remove the permission, if necessary

A motion was made by Councilor Stone and seconded by Councilor Girard to table this until May 26th.

Roll call vote:

Girard - yes

Damren - no

Koloski - yes

Contois - no

Stone - yes

Lovett - no

Motion failed 3-3.

Councilor comments:

- Residents on Cat Hole Road should not have to suffer the dust, noise, etc.
- Police and Sheriff have limited staff for patrolling the area
- Councilor Contois didn't believe that ATVs should be on the road

Mr. Wilkie said the number of trucks/trailers allowed to park at Burger King was 75-80, but that is reduced to 25. He said of the SCATV Club membership that there are about 200 out-of-staters and they help work on the trails. The Club is working to get parking at other locations. Opening day for the season is May 23.

Regarding the calls for service/violations, Police Chief Mark Chase said he didn't have the answers right now. Regarding the sign boards, last year they were committed due to the pandemic. He is not opposed to putting them out for messaging. He doesn't believe the number of violations is a lot. He has worked the area, but when Police are present, people drive the speed limit. The Police Department has limited resources, but they will commit as much as they can. He praised the SCATV Club members for the work they do.

Michael and Maggie Saracino, Ward 3 and Cat Hole Road residents, said that even cutting the number of ATVs in half is still awful. It's very noisy. There are a total of 13 houses on Cat Hole Road. Not all of the riders drive appropriately. They asked to shut down use of the Class V portion of Cat Hole Road as was done for Chestnut Street.

Mark Kennett, Ward 3 and Veterans Park Road resident, would like to see a petition for those that are in favor of ATV use on the road. He specifically bought his home because of its close proximity to the ATV trails. He lives 10-15 feet off the road. Signage and patrols may help.

Mike Jurkowski, Ward 3, said he was in support of Saracino's request to not allow the ATVs on Cat Hole Road. He lives at the bottom of Cat Hole Road. ATVs are a daily nuisance. He works a lot and would like to be able to enjoy his house when he's not working. This creates a lot of traffic and noise. He wants Claremont to be a destination for this activity, but there has to be another way to get there.

Steve Neuser, Ward 3, lives on Cat Hole Road, is a SCATV Club member and he enjoys the sport. He said the Club does a good job getting the word out about the rules and regulations. He is in favor of keeping the road open.

Walter Stapleton, Ward 3 resident and State Representative for Ward 3, lives on Veterans Park Road and is a member of the SCATV Club. He enjoys riding his ATV up the road to access the trails. As a member of the Club, he registers his vehicle and obey the laws. He would like to continue to use the road. He is upset with those who don't follow the rules. He doesn't think folks should be denied recreation. This is an economic boon to the City. He thinks the trails, ATVs, boat landing, etc., are elements of the community marketing. Enforcement of speed is important. He suggested putting in speed bumps and issuing tickets.

Norm Blouin, Ward 3 resident and member of the SCATV Club, said that there will always be someone breaking the law. The area needs more patrols.

Gary Dickerman, Ward 3, was concerned about monitoring the parking.

Mr. Wilkie acknowledged they need to get the word out that there is limited parking in that area.

Scott Fischer, Ward 3, said he lives off the Rail Trail end of this. He likes to use the Trail and parking. Club members are respectful as well as are out-of-staters. He thinks losing Fish and Game enforcement would not be a benefit.

David Belisle, Ward 3, said he signed the petition and that he is a member of the SCATV Club. He said the number of machines that go through the area is getting unbearable. He said the problem is the UTVs which are noisy and they are not respecting the automobiles. They travel at highway speeds. He said the Burger King trail is three miles long. With work being done on the power lines, gravel was hauled up there and he suggested there may be parking space up there.

Mayor Lovett closed the public hearing.

There was more Council discussion about the need to be monitored, need for an educational campaign, and that the Council can revoke the permission.

A motion was made by Assistant Mayor Damren and seconded by Councilor Contois to deny the Class V roads permission to the Sullivan County ATV Club.

Mayor Lovett asked if they wished to modify the motion to include a caveat until an enforcement plan can be put in place. Assistant Mayor Damren said yes, but Councilor Contois said no.
Motion stands.

Roll call vote:

Girard - no

Damren - yes

Koloski - no

Contois - yes

Stone - no

Lovett - yes

Motion failed 3-3.

A motion was made by Councilor Stone and seconded by Assistant Mayor Damren to revisit this on May 26, when a full Council will be seated.

Roll call vote:

Girard - yes

Damren - yes
Koloski - no
Contois - no
Stone - yes
Lovett - yes
Motion carried 4-2.

Council agreed to move Ordinance 582 to after the next two presentations, after the break.

Mr. Morris said that because of the late hour, Planning and Development Director Nancy Merrill said she could move the solar ordinance to the next Council meeting. Councilors agreed.

Southwestern Community Services – Transportation Presentation

Mr. Morris introduced Teri Palmer, Program Transit Manager, and Keith Thibault from Sullivan County Community Services.

Ms. Palmer thanked the City for its past support of the program. For federal funding, they must have community match. For every local dollar, they get four federal dollars. Pre-COVID ridership was about 1,000 per month for Claremont. They have three public bus routes, Claremont, Charlestown to Claremont, and Claremont to Newport. They also have a Demand Response Route which runs two hours in the morning and two hours in the afternoon, like a taxi service for those living on the outskirts of Claremont. She said that Demand Response needs to run all day. They will get a Ford wheelchair accessible bus soon. This year, they have had 900 rides/month. They never shut down for COVID. They operate an early morning route for the vulnerable population for shopping. They average 60 rides for the volunteer drivers and 80% are from Claremont. They are trying to recruit volunteer drivers. The Lebanon route is ready to go. It's been approved to be a commuter route. It will start in July. They will operate Newport to Lebanon, but are waiting for a bus. They are working to increase mobility for health and human service providers.

Mr. Thibault said the Dial-a-Ride program collects people to get them onto the Lebanon bus. Funding requires match funding. This will be a dedicated route for 10 years. It will connect to Advance Transit and Concord Coach. Dartmouth/Hitchcock gave match money for that route. He talked about a new facility on 148 John Stark Highway. In 12-18 months, some of the buses will be electric. Mr. Thibault said there are advertising opportunities on the bus (i.e. vinyl wrap). Ms. Palmer said special licenses are not needed to be a volunteer driver and that drivers are paid mileage. They ask for at least 24 hours notice for the Dial-a-Ride program.

Mayor Lovett said this connectivity fulfills one of the Master Plan goals. Amtrak services were suspended because of the pandemic and will resume in mid-July and with the Route 120 bus route, it will connect this community to all of the major metropolitan areas in the New England region and to Washington, DC.

Audit Presentation

Tammy Webb, Vachon Clukay, Co. showed a PowerPoint presentation, Review of Audited Financial Statements as of and For the Year Ended June 30, 2020.

- Independent Auditor's Report
 - City received "clean" opinions for all reporting units
 - Focus on high-risk (material misstatements in the financial statements and potential fraud)
- The Audit Process
- General Fund Budget and Actual Comparison
 - Actual revenues and other financing sources were lower than the budgeted amounts by \$320,000
 - Significant changes are as follows
 - Tax income was less than budgeted by \$385,000 resulting from tax deeding process on many properties
 - Motor vehicle permit fees exceeded projected amounts by \$274,000
 - Community Center income was less than budgeted by \$157,000
 - Actual expenditures and other financing uses were \$890,000 lower than the approved general fund budget
 - Significant changes are as follows
 - General government savings of \$504,000
 - Culture and recreation savings of \$315,000
 - The end result is that the City's ending fund balance is \$570,000 higher than originally budgeted
- Budgetary Fund Balance - \$4,560,000
 - According to the City's fund balance policy, the City strives to maintain an unassigned fund balance of 5-15% of budgeted General Fund operating expenditures each fiscal year
 - Unassigned fund balance of \$2,391,000 = 13.8%
- Federal Grants
 - Expended approximately \$1.9 million in federal awards
 - Two major programs
 - Community Development Block Grants
 - Airport Improvement Program grants
 - City deemed to be in compliance with grant requirements
- Future Pronouncement
 - During May 2020, GASB issued Statement No. 95 – Postponement of Effective Dates of Certain Authoritative Guidance
 - GASB Statement No. 84 – Fiduciary Activities will be implemented during FY21
- Governance Communication

Mayor Lovett congratulated the City for having a "clean audit."

Regarding the letter to Councilors to identify problems, Ms. Webb said she received only three responses even after sending out two requests.

Assistant Mayor Damren congratulated Mary Walter, Finance Director, for doing a good job.

Accept Grant from Factory Mutual Global – Fire Prevention Program

Fire Chief Bryan Burr gave some information about the grant. This will be used for a Sparky the Fire Dog costume for fire prevention. Cost of the costume is \$3,100. The grant is \$2,700.

A motion was made by Councilor Koloski and seconded by Assistant Mayor Damren that the Claremont City Council hereby accepts with sincere appreciation a grant in the amount of \$2,700.00 from Factory Mutual Global – Fire Prevention Program for the purpose of purchasing a Sparky the Fire Dog costume, a registered trademark of the NFPA (National Fire Protection Association). The costume will be used in an effort to enhance the Fire Department’s fire prevention program and during the Annual Fire Prevention Week Parade.

Roll call vote:

Girard - yes

Damren - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 6-0.

Ordinance 582 Rescinding Article V- Merit System – Second Reading – Public Hearing

The tenets of Article IV (Merit Plan) of the Claremont City Charter clearly anticipated the creation of a set of “rules and regulations . . . with regard to . . . matters necessary to the maintenance of efficient service and improvement of working conditions [for Claremont employees].” *See Claremont City Charter, Article IV, Section 51.* However, it is also apparent that the Charter intended that these rules would be in the form of policy in that the Charter sets forth, “[t]he rules and regulations shall continue in force subject to amendments submitted to both the council and personnel advisory board by the manager which shall become effective one month after their submission unless vetoed by the council within that period.”(emphasis added). *Id.*

At some point, the Council chose to create a provision in the City Code titled, “Merit System” in which the Council enacted these personnel policies in the form of municipal legislation. In addition to that, the City also created another document, in the form of a policy known as the “Merit Plan”, which seeks to address many of the same personnel policies as found within the City Code. As a result, the City’s administration has found it difficult to deal with two

somewhat competing sources for personnel matters. Moreover, personnel policies typically require continual amendments and changes as a result of circumstances or legislative acts by the U.S. Congress or New Hampshire Legislature. By adopting these policies as municipal legislation, the City administration is hampered in adopting any necessary changes, in a timely fashion, as even the slightest change requires an ordinance to be presented to the Council which leads to substantial delay due to the legislative process of the City.

The purpose and motivation of this proposed change is to eliminate the duplication of effort with personnel policy by creating one source document for all such policy and rules. In addition, the use of a policy (as opposed to municipal legislation) is in compliance with the provisions contained within the Claremont City Charter. Furthermore, this new process will allow the City's administration to more efficiently amend and address personnel policies as those needs may require.

Enactment of this Ordinance will rescind, in its entirety, Article V of Chapter 2 of the City of Claremont's Code. The City will amend the title of the policy known currently as the "Merit Plan" to the "Merit System" (in keeping with the language of the Charter) and the provisions of Article V (Merit System) are already incorporated into as well as accounted for by this City policy. This change is requested by the City Manager.

A motion was made by Councilor Stone and seconded by Assistant Mayor Damren to suspend Council Rules to read just the Explanation of Proposed Action.

Roll call vote:

Girard - yes

Damren - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 6-0.

A motion was made by Assistant Mayor Damren and seconded by Councilor Girard to adopt Ordinance 582 Rescinding Article V- Merit System on Second Reading.

Assistant Mayor Damren read the Explanation of Proposed Action into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

Girard - yes

Damren - yes

Koloski - yes

Contois - yes

Stone - yes
Lovett - yes
Motion carried 6-0.

NEW BUSINESS

Ordinance 583 Zoning Ordinance Amendment – Article X Solar Ordinance – First Reading

Moved to the next Council meeting.

Because of the late hour, Councilor Koloski agreed that Policy Committee Discussion could be moved to the next Council meeting.

Budget Presentation and Overview

Ms. Walter showed a PowerPoint presentation: State of the Current Budget – Budget Presentation & Overview.

- General Fund Trending in April 2021
 - Revenues – We are anticipating that we will meet revenue projections by year end
 - Expenditures – 77.7% of the budget has been spent and we are 85% through the year, however departments resupply their areas toward the end of the year
- Brief Overview of Fund Balance (non GAAP) – Part I
- Brief Overview of Fund Balance (non GAAP) – Part II
 - Estimate drop into fund balance \$970,000
- Best Practice for Fund Balance Levels
- Trends I'm Observing in Fund Balance Levels
 - Using fund balance for recurring things:
 - Heating vacant JSL building
 - Fund shortage in the Downtown TIFD
 - Fund bus service

Policy Committee Discussion

Moved to next Council meeting.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski said he would like a statement from the City about whether it takes more time to upload emails between the City Manager and the Council to a flash drive or to the website.

He would like to have that conversation. Mayor Lovett said a while back it was suggested (and she hoped that it was being done) to have a folder to place answers in that pertain to the proposed budget that could easily be made accessible to the public.

Councilor Koloski asked about suspending Council Rules and whether that was for the entire meeting or just one item. Mayor Lovett said it is normally for one particular item, not the entire meeting. Council Rules can be modified to make that clearer.

Mr. Morris listed the action items from the meeting:

- Pleasant Street Project - talk with engineer and contractor regarding the rail bed to make sure that remains City property
- Move Selection Process to the next agenda
- Economic development state of the City (after the budget)
- Work on the list of properties
- Make sure the ATV petition is vetted
- Implement signs at Cat Hole Road
- Have Police Chief look at calls for service and citations in the Cat Hole Road area
- Re: Noise issue, that has to be measured from inside the house and will have to wait until the ATV permission is approved
- Move Sullivan County ATV Permission to the May 26 agenda
- Cost to market on the side of Southwestern Community Services bus
- Move Policy Discussion to the next meeting
- During his budget presentation, he'll have the Assistant Finance Director give her presentation
- Solar policy

Councilor Contois asked about the status of starting Council meetings earlier. Mayor Lovett said the responses she had received were split. The May 26th meeting will start at 5:30 p.m. to interview the Councilor candidates.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 10:40 p.m., a motion was made by Assistant Mayor and seconded by Councilor Girard to adjourn.

Roll call vote:

Girard - yes

Damren - yes

Koloski - no

Contois - yes
Stone - yes
Lovett - yes
Motion carried 5-1.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council